

Legal memo – Remote work from Lyon, 01/10/2026– 31/01/2027

To: Catherine Lemaire, Tom Verhaegen – **From:** Isabelle Moreau, Legal Counsel

1. **Policy:** Telework Policy v2 §3 caps international remote work at **60 working days per calendar year** and requires the **written approval of the HR Director**. The request covers ≈ 83 working days (≈ 61 in 2026 incl. 4 days already used, and 22 in 2027). Tom's Teams message ("sure, go ahead") is not an approval under the policy.
2. **Social security:** Pieter would work 100% in France. Under art. 11(3)(a) Reg. 883/2004, **French legislation applies** unless the stay qualifies as a posting (art. 12) and an **A1 certificate** is issued by the Belgian ONSS before departure. The cross-border telework framework agreement (<50%) does not apply to 100% work abroad.
3. **Tax:** stay < 183 days, remuneration paid by a Belgian employer without French permanent establishment → taxation in Belgium likely remains (BE–FR treaty), to be confirmed by payroll.
4. **Contract:** the CCT 85 telework annex fixes Uccle as place of telework; any change requires a written amendment.
5. **Recommendation:** approve max 60 working days for 2026 (01/10–≈23/12) subject to A1; the 2027 part only via formal derogation (policy §3.4) with an amended annex.